第五款處分書

Translation

Memorandum of the
principle of the course
of actions taken towards
the aboriginal territory
of Formosa
(No 5)

On the 16th of the ninth month,
Jon and three other high officials of
the Tsung-li-Yamen returned the
visit of the ambassador Okubo to his
lodging and held a conference with
the ambassador and the Minister
Yanaghihara. Jon and others
brought with him the reply to the
questions lately given by the am-
bassador. The first article of
the reply is as follows:

The Chinese government has
improved the manners of the abo-

riginal tribes, authorized their com-
munities, received the tribute from
those tribes only, who can pay it, edu-
cated those, who have some good and
intelligent characters. We have always
applied the liberal policy towards them,
and with the design to cultivate and
improve their manners have submit-
ted them under the jurisdiction of the
neighbouring Chiefs and Rens. Thus,
we actually established the government
over them. Moreover our policy is
to cultivate them, not by the hasty
and precipitate method, but by the
gradual and steady one. This is
also the case with some untamed
savages in Hainan, belonging to
the province of Quang-tong and
also with several other savages liv-
ing in our Empire. This should
be evident, if you consider that

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we have various modes of administration, proper to each locality and to each province and especially with regard to the savages; this is said in a clause of the treaty which mentions the diversity of laws and administration between the two countries.

The second article of the reply is as follows: our Empire now keeps the friendly relation and the international commerce with the foreign nations; If consequently, their public and private Vessels were wrecked by the stress of weather or the foreign merchants should suffer some injury from our people, and if the foreign Ministers should demand some satisfaction to our yamen, minutely setting forth the circumstances attending the event,

we shall examine the affairs without fail and shall never neglect them, though there might be necessarily some difference between them as to the speed and facility of settling them. Consequently, if your government would have written minutely about the present affair of the Formosan savages, our yamen should have taken the proper measures to examine and settle it. Then our yamen should have established proper laws over them and have conciliated them to protect the foreigners in future being anxious the recurrence of such an unfortunate event.

The principles of the reply to the written conference about the lease-hold land were as follows: all the lands cultivated by the people's own hands and the vice-lands cultivated

located and not yet entered in the tax-registers are exempt from the land-tax and besides there are other lands exempt from it. The words of savages, therefore, cannot be adduced as an evidence bearing on the point. The ambassador Okubo seeing these replies said, that the aboriginal territory cannot be considered as being in the same condition as Hainan in the province of Guang-tong and asked if the Chinese government in maintaining the right of jurisdiction over the aboriginal Formosa take their evidence only from Taiwanfoo-fze, which say that the Chinese government receive an annual tribute of twenty taels, and if they have no other evidence on it. He added also to ask again

some more questions, about the replies of the Tsung-li-yamen. The Chinese officials replied, that even if admitting the evidence of Taiwanfoo-fze, it is only a partial evidence, there being the variations in harvest and some exemption from the taxes and said that if the ambassador should have some points to inquire, he will ask by writting.

On the 19th of the 9th month, the ambassador Okubo went to the Tsung-li-yamen, accompanied by the minister Yanaghiwara and others; he then seeing Wan-Tsang and five others and expressing his dissatisfaction of the Chinese replies delivered them the two other writtings containing the new questions, the Chinese high officials receiving these writtings consented

to

to answer by a dispatch and said the following: We have expressed minutely our opinion in our late conference with you, but there has been no termination to our discussions. To explain briefly our opinion, the treaty provides that the laws and administration of the one state shall never be interfered with by the other state. our object of the conference is to govern our country, according to this provision of the treaty. The so-called international law has been lately compiled by the European nations but there being no mention of China in it, we intend to negotiate, without adopting any opinion contained in it. Now, if you would consider, that we have no control nor administration over the aboriginal

tribes of Formosa, it would become that you would find fault with our government. If you would say, that we have no jurisdiction over them pretending that we have no power of administration there, what we should answer about this? you question to what extent we have practically established our administration and laws over the aboriginal tribes, is also very difficult to answer, for us. If we should answer, that we have established no laws nor administration over them, we have several other places in the provinces of Se-chuen and Yunnan, besides many other places even in the vicinity of the capital having no established government office, which the foreign nations would consider likewise as not

not belonging to our jurisdiction. If this is indeed the case, it should be very much embarrassing for our Empire. If you would endeavour to enumerate the negligences on the part of our Empire, there might be perhaps some of them. But, as to the evidences of the aboriginal territory's belonging to our jurisdiction, they are indeed numberless; if then, notwithstanding this, We should contradict ourselves and declare that there is no evidence, We should throw a great shame upon ourselves. We beg you consequently that you will henceforth entrust our government with all the affairs concerning the aboriginal territory. Your Excellency and the Minister Yamaguchiwara come especially to our Empire, regardless of

the great distance, to hold up the friendly relation between the two countries. If here one discussions would extend to the minute details, there should be no termination to them. That we desire sincerely is only to settle the present matter. We have all candid character and do not desire the discussions. As to the evidence of the actual conditions of the aboriginal Formosa, we fear that there might be somewhat obscure points in it, but henceforward We shall extend our laws and administration over the aboriginal territory and restraining their wicked and violent actions, shall take the means of infinitely preserving the friendly relation between the two countries. If, on the contrary, you would not consent to entrust our govern

government with the present affair,
we should have them no-thing to say.
If such should indeed be the case,
when might the present discussion
be brought to its termination?
Besides, if we should discuss, ascend
ing to the past, we might break
the peaceful relation between the two
countries. As the treaty provides,
that the injury done to the foreigners
would throw the responsibility on the
local officers, etc. we might punish
them, if there would be some care-
lessness on their part. But the mo-
ment passed away, irrecoverably.
If you would believe in the words
of the high officials of the Tsung-
li-yamen, our government, aim-
ing to preserve the friendly rela-
tion, should not fail to take
the proper measures and we may

then guaranty for the introduction
of our civilizing influence among the
Formosan savages and for the hor-
rible treatment of good foreigners,
by them. Our object is to pre-
vent the occurrence of such an
unfortunate event like the present
one, whether the measures should be
taken by your government or by
ours. your question, whether our
laws and influence do indeed extend
over the Formosan savages or not is
the same as if we should have in-
quired of your government, to what
extent your laws and influence
do extend over Nagasaki. If in-
deed so, how we could return an
answer? If our people should be
murdered at one of the islands
belonging to your Empire, it is
only the justice to demand of your
govern

government, the taking of some satisfactory measures for it. Last year, when Mr. Soyeshima come to Peking, Mron and Jon held a conference with Mr. Yonaghiwara and others, but on this occasion the latter did not declare the intended despatch of the expeditionary corps. If your government should affirm that the Formosan savages are masterless tribes, we shall affirm on our part that they are subject to our jurisdiction. Moreover, the pretended words of the abovementioned conference, could not be adduced as an evidence bearing on the point in dispute and we fear, that there might be the errors in the interpretation of the words. We hope now consequently to answer minutely to the several articles of your question.

The number of the tax-registers, owing as the evidence of the actual administration of Formosan savages is indeed very immense and it should employ several days to copy them. This, you will see, is a tax-register of Formosa. so saying, the Chinese officials showed this register to the ambassador Okubo.

The ambassador Okubo said the following: Any actual evidence must be there, if the Formosan territory belongs to your Empire, as your reply says; But there exists no such evidence, and for the International Law says that the land over which the jurisdiction or power of a state does not extend, can not be regarded as belonged to it, I trust, the Formosan territory has not belonged to your Empire. I am not

not pleased with our argument and disputation; But it is the main object of dispatching at first of the Minister Yonaguchiwara and consequently of the ambassador by our government to maintain the peace between the two nations, which is regarded by our government as very important. When your government however continues to hold the opinion that the Formosan territory belonges to China, I must dispute repeatedly in order to determine the right or wrong by any actual evidence. It is entirely different subject from the question of the Formosan territory that the two government shall not interfere with each other in their own public affairs, though this is mentioned in the treaty between the two nations. The Formosan savages

are the most wrong doers and injure usually other people; This is the cause of the present question as many times stated before. While our government has punished such wrong and independent savages, your government blames our acts, quoting to the evidence the facts on the inland within your Empire, which must not be compared with that on the land of the Formosan savages. There is no reason that a government leaves impunished such people under its jurisdiction as the Formosan savages, who are wrong and injure all the foreigners; This is a thing which I can not understand. Because the present question had arose from the injures inflicted by the Formosan savages upon our people, it is of natural consequence that our arguments have gone

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gone to such extend. If the juris
diction or power of your government
has extended over the Formosan sava
ges, they must have been punished
for their Wrongs. But this was ne
ver done until the second months
have elapsed; Therefore our govern
ment, finding the Formosan terri
tory to be Without master, has tak
en the act of chastisement upon
itself. And now, that the savages
have been submitted by our force,
your government proposes to have
the right to exercise the jurisdic
tion over the savages; This is
very unreasonable. Though I have
not to interfere in your policy,
but it is of necessary consequence
that the arguments founded upon
the reasons, have extended to it.
Though I should submit to you

if I can understand your opinion,
but I could not reluctantly submit
to your will; My opinion has been
explained two or three times, and if
you can not give the clear answer
to it, it may be clearly seen that
your power has not extended over
the land of the savages. And if
the Words should be given that the
power of your government has not
extended over the savages, there is no
need to say much more. But if
no answer shall be given, I shall
regard the land to be Without mas
ter. Suppose that there is such
Wrong people as the Formosan savages,
in a district near Nagasaki; Then
our government shall punish them
so that they should not impure the
foreigners. Now that the communi
cations are held by Water between
the

the eastern and Western Worlds, the safety and protection must be given to the navigations of all the nation. Formosa is indeed the important island on the high way of commerce, but its people are like the pirates in their practice and injured our good people; our government can not endure such wrongs and made known in the late year through the ambassador Soyeshima the intention to your government, only because the territory of the savages is contiguous to your Empire; But in regard of the use or not use of the force, nothing was said, for it is unimportant. If your government considers the land of the savages as belonged to your Empire, Why your government did let them without inquiring

into their wrongs, until about one year has been passed, since our countrymen were injured; Because a man's life is of a very great importancy, the present question is also of a very important one between the two countries. Therefore I have come here as the special envoy in order to argue this question, but Why do you say that the present discussion can not be considered as the Words to rely on? All my Words are those of our government and to be relied on. There is no need for copying the tax-register of Formosa. My only wish for your kindness, is to give me the answer to my question proceeded to you today.

Okubo said again that though in your answer to the writing commu

communications of our officer Yoshoo-
shima, it is said that the savages
are your people, and thus the land
on which they live, is also that of
your Empire, this is a forced ana-
logy. The two questions in the
composition of which a few senten-
ces in the answer to the first
question lately asked have been
cited are as follows:

The first section When a region
or territory has been annexed to
a country the country may be
said to be liberal in its govern-
ment towards the new region or
territory, When state of the customs
of the people are left as they were
though they would be injurious to
the peace. But to hear and try
the actions civil and criminal and
to punish the offenders; these are

great and important things in the
laws of any country. It is true
that you have said "customs are
private and laws are public (there-
fore no law and no country"); but
can these two sentences prove that
the aboriginal Formosa has belonged
to your country?

"If your country has the right
"over the aboriginal tribes to make
"laws for them and to govern them,
"there is a custom which you must
"not allow to be continued, that is
"the custom of murder by them of
"the wretched people who have been
"carried about by the Waves. This
"practise has grown to a habit with
"them, and about it no scruple
"is made by them. Still do you
"pretend that your laws have any
"effect in restraining them.

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The second section; "the taxation of a country has its origin in the contract between the sovereign and people. Now What you call taxes from savage communities; is it a sort of tax or a sort of present? If it is a present from the weak to the strong it should be not a tax in the proper sense of the word. I think it is also very possible that the so called taxes should be not paid by people, but only by the chieftans, or that some persons Who are going and coming to carry on the trade between both sides, and engrossing goods, should give some part of profit to the superiors to get into the good graces of them, and this part they should call taxes from savage communities. Please tell

me practicular accounts."

The third section, "There is no people Who are instructed, Who are not reclaimed How much has the system of instruction for the aboriginal tribes been practiced actually? and if it Were pratied at all how do their barbarity remain uncharged so long time? If you had taken some children to school, it is not yet to be admitted as a proof of general education."

The fourth section, "Inside and behind the mountains, the region is very remote and distant and people go there very rarely can the officers of Foos and Kiens Who are governing this region from afar, lay the cases and restrain the bad people? The local authorities should be established in the places to

to be governed not out of the
places. But now the region where
people go very rarely, has to be
governed by local authorities which
are established at a distant place,
still can it be said that the go-
vernment office has actually been
established? Besides this, the causes
are not heated and the bad people
are not restrained. For what pur-
pose is a government office esta-
blished? What I question about,
is practice not theory."
The fifth section, "The acquisition
of a region by conquest is right,
only because it should be follow-
ed by government and instruc-
tion. Now your country asserts
that Formosa has been brought
under your jurisdiction. Then
the responsibility of its government

and instruction is upon your
country. Not only for the natives,
but also for the foreign nations, your
country must pay a great attention
to these subjects. Why is not your
country industrious and quiet?
Again if the government and ins-
truction are getting on gradually,
as you said, We would have per-
ceived the beginning of them. But
it is two hundred years and up-
wards since Koo and Kien were es-
tablished in Formosa; and yet
inside and behind the mountains
the natives have not seen the be-
ginning of the instruction and edu-
cation. How is your country lazy."
The sixth section, "the government,
and laws should be a little diffe-
rent in the different countries; vary-
ing as custom and necessity require

but

out punishing the bad, and persuading people to the practice of virtue; these are practiced almost with out exception in all the nations. Now in the aboriginal Formosa the violent are not restrained, the bad are not put to death. This effects the interests of both countries, and how we can be silent and stand unconcerned. What I am question about is not your manner of governing the aboriginal Formosa but the existence of your governing power therein. The object of his question is to get the facilities in deciding the Formosan question, not to violate the political right of your countries. The obligation you cited of the treaties between the two countries has nothing to do with this question."

The first section, in the second question, "If your country have established a government office to manage the aboriginal territory, as you say, the local authority should institute inquest against the savages who may commit the bad deeds and should refer the case to the judicial courts; this is the responsibility of a local authority. It should not wait to have the particular and minute communications and dispatches from the foreign ambassadors and ministers, before it could commence the proceedings against the offenders.

"It is more convenient to instruct people before they could commit the bad deeds, than if we should punish them after the commission of offences. It is better to institute the proceeding the offenders before application

plication could be made, than to commence the proceeding after application was made.

"Your country has not the instructed savages before the commission of crimes not instituted the inquest against them, after the commission; and have accused us with the neglect of particular and minute communications and despatches concerning the subject in question. Are you anything but lazy, having no concern about the subject? I could not rely on your Words that you should take good measures for the future. Moreover in the note-book which at last conference I have received, I have found the Words" no government office has been established, nor the troops have been posted." But to-day you say "the

government office has been established there to manage the savages." Thus I have two contradictory statements; and I do not know which is right. Now I shall conclude in saying that What I wish is that the savages land should be cultivated and the savages themselves should be reclaimed that the navigators of eastern and western nations might have convenience and accommodation, and not the knowledge of the art of argumentation as used in communications."

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